

Court No. - 21

Case :- WRIT - C No. - 9064 of 2012

Petitioner :- M/S Liladhar Tularam Ice Factory

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the petitioner, Shri Rajesh Tripathi, learned counsel appearing for respondents no. 2 and 3 and learned standing counsel appearing for respondent no.1.

Petitioner's case in the writ petition is that a checking was made on 20.6.2000 on the basis of which a case no. 242 of 2000 was also registered and the petitioner has been acquitted on 19.3.2010.

Learned counsel for petitioner relying on the provisions of clause 8.2 (x) (g) (h) of the U.P. Electricity Supply Code, 2005, the petitioner claims to be entitled for restoration of supply.

Learned counsel for the petitioner submits that the petitioner has made an application praying for restoration and also prayed for refund of the amount already deposited but no decision has been taken neither the petitioner's supply has been restored.

In view of the facts and circumstances of the case, an interim mandamus is issued to the respondents to restore the supply of the petitioner within three weeks from the date of production of a certified copy of this order or to show cause within the said period.

List after three weeks.

However, it is made clear that in the event the supply is restored, the petitioner shall be liable to pay all the charges of the current bills.

Order Date :- 21.2.2012

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Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Vinay Kumar Mathur,J.

As prayed, counter affidavit be filed within three weeks' and no more.

List thereafter.

As the interim order is expiring today, it is extended till the next date of listing.

Order Date :- 29.3.2012

T. Sinha

Court No. - 21

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Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

Passed over on the request of Sri Rajesh Tripathi as it has been stated that the counter affidavit is under preparation.

As the interim order is expiring today, it is extended till the next date of listing.

Order Date :- 26.4.2012

AM/-

Court No. - 32

Case :- WRIT - C No. - 9064 of 2012

Petitioner :- M/S Liladhar Tularam Ice Factory

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Rajesh Tripathi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Learned counsel for the petitioner states that he has no instructions in the matter.

Accordingly, the writ petition is dismissed for want of prosecution.

Interim order, if any, stands discharged.

This order has been passed in the presence of Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos. 2 to 6.

Order Date :- 19.9.2018

Atmesh